

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 12-34
Election Rules Over Receipt and Handling of Ballots**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, in accordance with Article VII, Section 6, of the Constitution of the Chickasaw Nation, wherein the Tribal Legislature shall prescribe election procedures and regulations for tribal elections, and

WHEREAS, a need exists to address problems with the receipt and handling of ballots for such tribal elections.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature amends Title 8 of the Code of the Chickasaw Nation, as follows:

Amend Section 8-403, Return Date, to read as follows:

SECTION 8-403 RETURN DATE.

A. A special Post Office Box in Ada, Oklahoma shall be secured in the name of the Chickasaw Election Commission, for the purpose of receiving returned ballots. Such Post Office Box may be secured, directly, by the Election Commission or require it as a condition of any contract with any accounting firm. Such return envelopes for those ballots will be imprinted with that Post Office Box Number.

B. Ballots must be received by mail and postmarked no later than 5:00 p.m. on the third Monday of August, for the Chickasaw General Election, or on the date and time set for the closing of any other Chickasaw Election.

C. Ballots that bear postmarks that precede the closing date of a Chickasaw Election, that have been delivered to the United States Postal Service and placed in the Commission's special Post Office Box before 9:00 a.m. on the date that ballots are to be counted, such ballots shall be collected by the Secretary of the

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Chickasaw Election Commission on or after 8:30 a.m., but before 9:00 a.m. and accepted by the Chickasaw Election Commission as lawfully received for the purpose of inclusion of those ballots in the election proceedings.

Amend Section 8-408 Outer Envelope Information, Return Envelope, to add the following at the end of the section, as follows:

SECTION 8-408 OUTER ENVELOPE INFORMATION, RETURN ENVELOPE.

Further, on the outer envelope, and below the place for the voter's signature, a notary "Acknowledgement" statement and signature line shall be added, as follows:

Subscribed and sworn, under my Seal, by me, this day:

I, _____, verify and acknowledge that _____, and known to me, did sign this outer envelope, in my presence on the ____ day of _____, in the year _____.

My Commission expires on _____, _____.

(Seal) _____

Amend Section 8-409, Marking Ballots, to read as follows:

SECTION 8-409 MARKING BALLOTS.

A. A ballot shall be marked properly and sealed in the inner envelope. The inner envelope shall be sealed in the outer envelope, and the outer envelope shall be signed by the voter, where indicated, to be valid. Such signature, at the discretion of the voter, may be notarized in accordance with the provisions of Section 8-408 of Title 8 of the Code of the Chickasaw Nation. Such notary, although not required, is recommended, and information to this effect shall be provided in the instructions sent to the voters.

B. A notarized signature shall be used to confirm whether the person signing the outer envelopment is the voter for which the ballot documents were intended, due to the possibility that the voter's original signature on file with the Tribal Registrar may have changed with the passage of time.

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Amend Section 8-423, No Vote Counting, to read as follows:

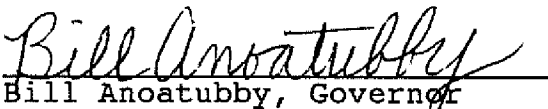
SECTION 8-423 NO VOTE COUNTING.

Watchers shall not participate in actual vote counting. No watcher shall talk to any counter during the actual vote counting process or disrupt proceedings in any other manner. One warning, given by the Election Secretary or any one member of the Chickasaw Election Commission, for such interference or disturbance, shall result in the watcher's expulsion from the proceeding upon commission of a second offense.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on September 15, 1995, by a vote of 8 ayes, 5 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: SEP 15 1995

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Explanation: Adoption of this resolution would provide that a special Post Office Box in Ada, Oklahoma be obtained, just for receiving returned election ballots. Also, ballots received by the Post Office on the morning of the counting of the ballots which bear a postmark that precedes the time and date for the closing of the election shall be accepted for processing by the Election Secretary prior to 9:00 a.m. on the day of the ballot counting.

It further provides that the outer envelope shall provide for a notary "Acknowledgement" for verifying the signature of a voter. Such notary would not be required, but would be recommended, and information about this would be provided in the instructions that are mailed to the voters.

Watchers who interfere with or disturb the election counting proceeding, after a second warning by the Election Secretary or any one Election Commissioner, would be expelled from the proceeding.

Requested by: Ad Hoc Committee on Election Rules and Regulations

Presented by Mevelyn Kirkpatrick, Chairman
Ad Hoc Committee on Election Rules and Regulations